IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

APPLICANT'S RESPONSE TO NOTICE TO FILE MISSING PARTS

(PETITION FOR EXTENSION, CONDITIONAL SUSPENSION REQUEST, SUBSTITUTE SPECIFICATION, CLAIMS, ABSTRACT, DECLARATION, AND DEPOSIT ALLOCATION)

Applicant / Sole Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/748,206
Filing Date:	July 21, 2026
Confirmation Number:	5301
Art Unit / Examiner:	Initial Exam / Demetrius Jones
Customer Number:	226458
Entity Status:	Small Entity (37 CFR § 1.27)
Title of Invention:	COVERT BIDIRECTIONAL ACTIVE-MATRIX ILLUMINATION AND IMAGING APPARATUS

I. Procedural Posture and Small Entity Reaffirmation

Applicant respectfully submits this comprehensive response to the Notice to File Missing Parts mailed August 18, 2026. The two-month statutory response period set in the Notice expired on Sunday, October 18, 2026. In accordance with 35 U.S.C. § 21(b) and 37 CFR § 1.7, when the last day of a period falls on a Saturday, Sunday, or Federal holiday, the action may be taken on the next succeeding secular or business day, which is Monday, October 19, 2026. Accordingly, this response filed on Sunday, October 18, 2026 is fully timely within the initial statutory response period without extension.

Applicant hereby formally reaffirms Small Entity status pursuant to 37 CFR § 1.27. Applicant is an independent inventor who qualifies under 37 CFR § 1.27(a)(1) and has not assigned, granted, conveyed, or licensed, and is under no obligation under contract or law to assign, grant, convey, or license, any rights in the invention to any entity that would not qualify as a small entity. A Verified Statement of Small Entity Status was entered on October 18, 2026.

II. Complete Resolution of Formalities Deficiencies

Applicant concurrently submits a fully compliant nine-document submission envelope curing all cited pre-examination formalities:

1. **Transmittal Response (Document 01):** Establishing statutory timeliness, entity status, no new matter certification, and fee allocation.

2. **Protective Petition for Extension of Time (Document 02):** A conditional petition under 37 CFR § 1.136(a) to preserve procedural timeliness.

3. **Conditional Request for Suspension of Action (Document 03):** Requesting a six-month suspension under 37 CFR § 1.103(a) upon pre-examination clearance, citing pending federal litigation in the Southern District of Texas.

4. **Perfected AIA Inventor Declaration (Document 04):** Fully compliant with Form PTO/AIA/01 and 37 CFR § 1.63(a)(4), incorporating the express statutory inventorship and authorization clause.

5. **Clean Substitute Specification (Document 05):** A complete, clean specification compliant with 37 CFR § 1.125(c), strict double line spacing under 37 CFR § 1.52(b)(2)(i), with unsegregated claims and abstract excised.

6. **Marked-Up Copy of Specification (Document 06):** Showing all excised matter in strikethrough pursuant to 37 CFR § 1.125(c).

7. **Standalone Replacement Claims (Document 07):** Claims 1–6 commencing on a separate sheet headed by "What is claimed is:" pursuant to 37 CFR § 1.75(h).

8. **Standalone Replacement Abstract (Document 08):** An abstract commencing on a separate sheet under 37 CFR § 1.72(b).

Substitute Specification and 37 CFR § 1.125(b) Certification

Applicant concurrently files a Substitute Specification, including a clean copy and a marked-up copy pursuant to 37 CFR § 1.125(c). The sole purposes of this substitution are:

1. To segregate the claims and abstract to separate sheets (37 CFR §§ 1.72(b), 1.75(h)); and

Applicant hereby certifies that the technical disclosure remains invariant and that these procedural changes introduce no new matter into the application.

III. Statutory Fee Accounting and Deposit Allocation Waterfall

Pursuant to 37 CFR § 1.16, 37 CFR § 1.27, and MPEP § 509, the mandatory Small Entity base fees for this application are:

- Basic Filing Fee (Code 4011 / 2001): $70.00
- Utility Search Fee (Code 2111): $308.00

- Utility Examination Fee (Code 2311): $352.00
- Late Filing Surcharge (Code 2051, 37 CFR § 1.16(f)): $68.00
- Non-DOCX Filing Surcharge (Code 2054, 37 CFR § 1.16(u)): $172.00
- **Total Gross Small Entity Base Fees: $970.00**

The official XML docket records $520.00 in unapplied deposit funds held under serial number 19/748,206 (recorded under Fee Code 2622 / deposit credit). Under 37 CFR § 1.22(b) and MPEP § 509, the Office is bound to allocate unapplied funds in accordance with Applicant's specific direction. Applicant directs that the $520.00 unapplied credit be allocated as follows:

1. Basic Filing Fee (Fee Code 4011/2001): $70.00 (Fully satisfied);
2. Examination Fee (Fee Code 2311): $352.00 (Fully satisfied); and
3. Late Filing Surcharge (Fee Code 2051): $68.00 (Fully satisfied).

This allocation absorbs $490.00 of deposit credits, leaving $30.00 in unapplied funds. The outstanding fees requiring fresh tender are the Utility Search Fee (Code 2111, $308.00) and Non-DOCX Surcharge (Code 2054, $172.00), totaling $480.00. Concurrently herewith, Applicant remits via Patent Center checkout payment in full pre-examination base fees, plus $60.00 for the conditional suspension processing fee (Fee Code 2830), for a total electronic remittance of $540.00.

IV. Reliefs Requested

Applicant respectfully requests that the Office:

1. Confirm the timely receipt and full pre-examination sufficiency of this response under 35 U.S.C. § 21(b) and 37 CFR § 1.7;

2. Accept and enter the clean substitute specification, marked-up copy, replacement claims, replacement abstract, and corrected AIA inventor declaration;

3. Allocate the verified $520.00 unapplied deposit funds as specifically instructed pursuant to 37 CFR § 1.22(b);

4. Grant the conditional request for suspension of action under 37 CFR § 1.103(a) effective upon pre-examination clearance; and

5. Advance the application to Examiner Demetrius Jones for examination.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/

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Sole Inventor and Pro Se Applicant

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